

22STCV17639 22STCV17639

County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV17639 Hearing Date: August 25, 2026 Dept: B

Tentative Ruling

Hale v. Delgado, Case no. 22STCV17639

Hearing date August 25, 2026

Defendant Delgado's Motion to
Compel Plaintiff R. Chadwick's Deposition - UNOPPOSED

Defendant
Delgado's Motion for Leave to Amend Answer

Minor
plaintiffs B. Dixon and H. Chadwick, through their guardian ad litem Hale, and adult
plaintiff R. Chadwick, who is self-represented, sue defendant Delgado for injuries/wrongful
death arising from a motor vehicle accident in which defendant struck the
vehicle driven by R. Chadwick and carrying minor plaintiffs, causing injuries
and killing minor plaintiffs' mother.

Defendant
moves to compel R. Chadwick's deposition and for sanctions. The motion is
unopposed. Defendant also move for leave to file an amended answer asserting an
affirmative for settlement and release. Minor plaintiffs oppose.

Defendant Delgado's Motion to Compel Plaintiff R. Chadwick's
Deposition

A

party may move for an order compelling attendance and testimony of a deponent when the deponent fails to appear for examination following service of a deposition notice. Code Civ. Proc. §2025.450. Defendant served a notice of deposition on 5/22/26 on R. Chadwick. Decl. Gardner, para. 3, exh. A. No objections were served. Id. at para. 4. R. Chadwick failed to appear. Id. at para. 5. Defendant attempted to meet and confer but received no response. Id. at paras. 6-7. An order compelling R. Chadwick's deposition and awarding sanctions is warranted.

Defendant

requests sanctions of \$915, at a reasonable hourly rate of \$285/hour. Decl. Gardner, para. 9. Defendant requests 2 hours for drafting and 1 hour for hearing. Id. This is reasonable and granted, as are costs of \$60. GRANTED; plaintiff R. Chadwick to appear at deposition to be held within 30 days at a date, time and location selected by defendant and to pay sanctions of \$915 within 30 days.

Defendant Delgado's Motion for Leave to File Amended
Answer

Minor

plaintiffs request judicial notice of: (1) 3/25/25 order approving minor's compromise for B. Dixon; (2) 3/27/25 order approving minor's compromise for H. Chadwick; (3) 1/7/26 joint status conference report; and (4) minor plaintiffs' 4/10/26 case management conference statement. GRANTED pursuant to Evid. Code §452(d).

The

court may allow amendment to any pleading. Code Civ. Proc. §§473(a), 576. Leave to amend must be granted unless opposing party establishes bad faith. See *Silver Org., Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–99. Per California Rules of Court 3.1324, a motion for leave to amend pleadings must be accompanied by a declaration stating: (1) effect of the amendment; (2) why the amendment is necessary and proper; (3) when facts giving rise to the amended allegations were discovered; and (4) reasons the request was not made earlier. CRC 3.1324.

The

declaration of counsel Gardner complies with CRC 3.1324. Defendant seeks leave to assert an affirmative defense for settlement and release, arguing minor

plaintiffs settled this matter on 3/25/25 and 3/27/25 and subsequently reneged. Decl. Gardner, paras. 3, 5. Defendant asserts the proposed additional defense was not previously raised, as the alleged settlement had not been reneged upon when the answer was filed. Id. at para. 4.

Minor

plaintiffs oppose, arguing the proposed affirmative defense is not meritorious, as the guardian ad litem never executed settlement documents. See RJN 3-4. Minor plaintiffs argue leave to amend under Code Civ. Proc. §473 can be denied where the proposed amendment is futile. See *Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230.

Per

the record, minors' compromises were filed and approved. The court cannot consider the merits of the proposed defense on this motion; sufficient facts exist to permit defendant to raise the proposed affirmative defense. GRANTED; defendant to file the proposed amended answer within 5 court days.